



SLEDGER MASTERING

# Public offer contract

Current version from: January 09, 2023

This Public Contract (hereinafter referred to as the "Contract") defines the procedure for rendering services for the preparation and processing of audio recordings and the preparation of master copies of audio recordings (mastering) of the service consumer in the person of musicians, producers, project managers, music groups, collectives, heads of digital labels and other interested in Services of persons (hereinafter referred to as the "Customer"). The Contract covers mutual rights, obligations, conditions and procedure for the relationship between the service rendering service "sledgermastering.by", located on the website <http://sledgermastering.by> (hereinafter referred to as "The Service"), represented by the Individual Entrepreneur Nekrasov Dmitry, acting on the basis of the Certificate of Registration No. 192778096 from 29-01-2018, issued by the Minsk City Executive Committee, hereinafter referred to as the "Provider", and the Customer who accepted this public offer on the conclusion of this Contract. Terms of use of the Service are compiled in accordance with the Civil Code of the Republic of Belarus 218-3: Articles 396, 404, 405, 407, 408, 463, 464, 733. If you use the Service for legal entities, you agree to the Terms on behalf of the legal entity.

## 1. TERMS AND DEFINITIONS

1.1. The following terms and definitions used in the following meaning in the Contract:

**Contract** - an Contract (agreement) between the Customer and the Provider for the provision of services for the preparation and processing of audio records and the preparation of master copies (mastering) of the Customer's audio records.

**Offer** - this document, the text of which is posted and published on the website of The Service, which is a public offer (offer) addressed to a wide range of persons with a view to providing certain types of services (paragraph 2 of Article 407 of the Civil Code of the Republic of Belarus); A fact confirming the conclusion of a public contract on the part of the Customer of services is its payment - acceptance (p. 3, part 408 of the Civil Code of the Republic of Belarus);

**Acceptance** - full and unconditional acceptance of the Offer by carrying out the actions specified in clause 5.3 of this contract. Acceptance of the Offer creates this u.

**Customer** - a person who has paid for the Offer and who is a consumer of services under the concluded The Contract.

**Provider** - a person performing services under this Contract.

**The Service Resource** - Internet resource of the Provider <http://sledgermastering.by>.

**Data** - any files and data necessary for direct rendering of service.

## 2. SUBJECT OF THE CONTRACT

2.1. The Provider undertakes to render services for the preparation and processing of audio recordings and preparation of master copies of audio recordings (mastering) (hereinafter referred to as the "Services"), and the Customer undertakes to accept the Services provided by the Provider and pay them in the manner and under the conditions specified in this Contract.

2.2. The list of Services that provided under this Contract, the terms for providing the Services and other conditions that determine the procedure for providing the Services, as well as other information that is essential for the provision of the Services, is posted by the Provider on the Service Resource in the relevant sections.

2.3. The Provider reserves the right to make changes to this Public Offer Contract, in this connection; the Customer undertakes to familiarize himself with the current version of the Contract and other necessary information before receiving the Services.

2.4. The contract exists and can be concluded in one of two languages (Russian or English), depending on a more convenient language for the Customer. The Contract in both languages has identical content and equal legal force.

### **3. PAYMENT OF OFFER AND CONCLUSION OF THE CONTRACT.**

3.1. This Contract is a public offer contract (Article 396 of the Civil Code of the Republic of Belarus), according to which the Provider undertakes to provide Services in respect of an undefined circle of persons (Customers) who applied for the Services.

3.2. Publication (placement) of the text of this Contract, situated on The Service Resource, is a public offer of the Provider, addressed to an indefinite circle of persons, to conclude this Contract (paragraph 2 of Article 407 of the Civil Code of the Republic of Belarus).

3.3. The conclusion of this Contract is made through the accession of the Customer to this Treaty as a whole, without any conditions, exceptions and reservations (Article 398 of the Civil Code of the Republic of Belarus).

3.4. A fact confirming the acceptance by the Customer of the terms of this Contract is payment by the Customer of the Services in the manner and on the terms determined by this Contract (Paragraph 3 of Article 408 of the Civil Code of the Republic of Belarus).

3.5. This Contract, subject to compliance with the payment procedure, shall be deemed to be concluded in a simple written form (Paragraph 2, paragraph 3 of Article 404 and paragraph 3 of Article 408 of the Civil Code of the Republic of Belarus) and does not require any other documents on paper.

3.6. This Offer is effective in that edition and on the terms and conditions that exist now (or was exist earlier).

3.7. The basis for payment is the receipt by the Customer of an exclusive unique link to the payment by e-mail.

### **4. PLACING ORDER AND ORDER CANCELLATION**

4.1 The order is making by the Customer by submitting an application on the corresponding page of the Service Resource, or by sending an electronic message via e-mail [info@sledgermastering.by](mailto:info@sledgermastering.by), or [sledgermastering@gmail.com](mailto:sledgermastering@gmail.com). The Customer can communicate through the official pages of The Provider in social networks <https://soundcloud.com/sledgermastering>, <https://facebook.com/sledgermastering>, <https://facebook.com/sledgerthedj>.

4.2. Submission of order (registration of order) is carrying out only after acquaintance of the Customer with the text of this Offer, the prices for services and the source files requirements. When submitting an application, the Customer automatically confirms the acquaintance and acceptance of all the conditions and requirements of this Offer.

4.3. When submitting an order (placing an order), the Customer uploads his Data to any available file-sharing service and send to The Provider download Data private link. After finishing the work, the Provider is uploading the result on any available file-sharing service in a limited format of quality (or shortened duration) and sends a private download link to the Customer on the Customer's e-mail address specified in the order. After acquaintance with the results, the Customer decides on further cooperation with the Provider, or cancelling the order. If the Customer declares further cooperation, the Provider sends an invoice for payment to the Customer, and the Customer pays for it. In case of successful payment, the Provider sends to the Customer a private link to download the fully completed order in the full version.

4.4. In the event that the Customer at the time of or after the payment of the order (but before downloading finished order in the full version) decides to refuse the services of The Provider and cancel an order, he has the right to request the funds spent back. In case of cancellation of the order, the amount paid is returning in full. The cancellation of the order is possible within 2 (two) working days after the payment of the order. The actual period for the return of funds depends on the bank that issued the Customer's card and can reach 30 (thirty) days.

### **5. RIGHTS AND OBLIGATIONS OF THE PARTIES**

#### **5.1. The Provider undertakes:**

5.1.1. Provide the Customer with the Services in the amount and within the terms agreed by the parties to this Contract (hereinafter referred to as the "Parties")

5.1.2. By posting on the Service Resource to provide the Customer with reliable information about the services provided, the terms of payment for services and other information required within the terms of this Contract.

#### **5.2. The Provider has the rights:**

5.2.1. To unilaterally make changes, additions to this Contract, of which the Customer is considering to be properly informed, since the publication of the amended version of the Treaty on the Service Resource.

5.2.2. Involve third parties for the performance of their obligations under this Contract, and use the services / works of third parties that provide the opportunity to provide the Services provided for in this Contract.

5.2.3. In the event of damage caused by the fault of the Customer (or the Customer itself) to the property or business reputation of the Provider and / or third parties involved in the provision of the Service Resource and the operation of the Service, to demand compensation from the Customer in full.

5.2.4. Processed Data (or cuts/previews) to use on the Service Resource in the section of samples (examples) of processing audio files, having previously received the verbal or written consent of the Customer.

### **5.3. The Customer undertakes:**

5.3.1. To behave respectfully towards the Provider and third parties involved in the provision of the Services and / or the operation of the Service Resource, and do not allow actions that question the security of the Service Resource and the Provider.

5.3.2. In the event of damage caused by the fault of the Customer (or by the Customer itself) to the property or business reputation of the Provider and / or third parties involved in the provision of the Services and the operation of the Service Resource, to reimburse the damage in full.

5.3.3. Protect private links to download Data, as well as the Data itself when downloading them to the Service Resource and ensure their safety, preventing transmission or sharing to the third parties.

5.3.4. In the case of using the materials of the Service Resource, to receive verbal or written permission from the Provider and post the borrowed materials of the Service Resource only after obtaining permission from the Provider and with the obligatory indication of the reference (link) to the source.

5.3.5. Protect and safe the Provider from any claims, liabilities, losses and expenses, including legal and accounting costs claimed by third parties in respect of Data.

5.3.6. Comply with the terms of this Contract.

### **5.4. The customer has the right:**

5.4.1. To demand from the Provider the proper provision of the Services in accordance with this Contract.

5.4.2. Request a refund in the cases specified in paragraph 4.4 of this Contract.

## **6. COSTS, ORDER AND TERMS OF PAYMENT**

6.1. The cost of services provided under this public offer is determined based on the type and amount of work chosen by the Customer according to the current prices indicated on the special pages of the Service Resource.

6.2. The cost of the Services under this Contract is paid by the Customer exclusively in non-cash order through the BePaid system to the Provider's settlement account no later than 7 (seven) banking days after the provision of the Services.

6.3. The reason for payment is the receipt by the Customer of an exclusive invoice with unique link to the payment by e-mail. Invoices are generating after the works according to the actual prices indicated on the special pages of The Service Resource in BYN (Belarusian rubles). Upon completion of the work, the Provider sends an electronic invoice to the Customer. The Customer can pay the invoice with the bank plastic cards of Visa, MasterCard or else. The funds are debited in the local currency of the Customer and converted according to the current rates of Visa International, MasterCard International, the National Bank of the Republic of Belarus, as well as the bank that issued the payment plastic card. Invoicing and payment transactions are providing by the BePaid payment system (<https://bepaid.by>). The payment process takes place on a special BePaid authorization page with using the Secure Data Transfer Protocol (SSL).

6.4. The payment is made not later than 7 (seven) banking days after the provision of the Services, which is confirmed by the loading by the Customer of the processed Data (files) from The Provider.

6.5. All the Customer's expenses associated with the transfer of funds to the Provider (if necessary) are charging to the Customer's account.

6.6. The Provider assumes the obligation to provide the Services only after receiving payment from the Customer.

## **7. DELIVERING PROCEDURE / ACCEPTING THE RENDERED SERVICES**

7.1. Provision of Services to the Customer is not accompanying by the preparation of an act of completed work.

7.2. The provision of Services under this Agreement is confirming by the fact of downloading Data on the private link provided to the Customer for downloading the results of the work.

## **8. RESPONSIBILITY OF THE PARTIES**

8.1. For failure to perform or improper performance of its obligations under this Contract, the guilty Party is liable in accordance with the current legislation of the Republic of Belarus, taking into account the specifics established by this Treaty.

8.2. By uploading and providing Data, the Customer fully and fully confirms the possession of copyright and related rights to the Data. The Provider assumes no responsibility for the authorship of the Data of the Customer.

8.3 The Provider is not responsible for the Offer:

8.3.1. For harm caused to the life and health of the Customer through his own fault or through the fault of third parties, as well as in the case of the third party's copyright claim to Customer Data in accordance with paragraph 7.2.

8.3.2. For inconsistency of the Services actually provided subjective expectations and representations of the Customer about such Services.

8.3.3. For incidental, indirect, special, punitive damages of any kind incurred by the Customer, as well as for loss of the Customer's income or profit, loss or damage to the business or business reputation of the Customer.

8.3.4. For loss or damage, unauthorized access to Data, disclosure of information or the Data itself, as well as Customer's financial losses resulting from or in connection with the use of the Service, the submission, refusal or interruption of the provision of services, even if the Resource Service is warned of the possibility of such losses or Losses.

## **9. TERM AND TERMINATION OF THE CONTRACT**

9.1. The present Contract is considering to be concluded from the moment of acceptance of the offer, however the responsibility of the parties may come from the moment the Data is downloading by the Provider and / or the Customer (depending on the type of work and of the right to processed audio recordings) and is valid until the execution of the Services.

9.2. The Customer agrees unconditionally that in the event of termination of this Contract in accordance with Section 7 of this Contract, he loses the right to demand from the Provider a refund of the amount and / or prepayment (if any) paid for the Services, even if the term the operation of the Services is not yet over.

## **10. OTHER CONDITIONS**

10.1. The Parties unreservedly agree that this Contract is concluding at the legal address of the Provider's location.

10.2. The parties unconditionally recognize the validity of the text of this Contract.

10.3. Parties acknowledge that the content on the Service Resource may in fact be provided by 3<sup>rd</sup> parties. In such cases, the Provider does not bear any responsibility for the error-free operation and content of such third-party resources.

## **11. PROVIDER REQUISITES**

The Service Resource « sledgermastering.by »

Individual Entrepreneur

/Individual Business/

Dmitry Nekrasov.

Registration Certificate No. 192778096

from 29-01-2018, issued by

the Minsk City Executive Committee.

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